

Calendar Line 1

Case Name: Derek Daniel Bobadilla, on behalf of himself and others similarly situated v.
Loan Factory, a California Corporation, et al.
Case No.: 24CV432129

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on June 24, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. Introduction

This is a class action for misappropriation of likeness brought by plaintiff Derek Daniel Bobadilla (“Plaintiff”) against defendant Loan Factory, Inc. (“Defendant”). The complaint asserts causes of action for: (1) violation of Civil Code section 3344 (unauthorized commercial use of name, voice, signature, photograph or likeness); (2) common law misappropriation of name and likeness; (3) violation of Business and Professions Code section 17200, et seq. (unfair competition); and (4) unjust enrichment. On October 22, 2024, in docket 24CV450091, Plaintiff filed a separate representative action complaint against defendants asserting a sole cause of action for civil penalties under the private attorneys general act (“PAGA”). The Court granted Plaintiff’s motion for class certification via written order on June 11, 2026.

Now before the Court is Plaintiff’s motion to compel compliance with a deposition subpoena served on non-party Brian Stevens (“Stevens”). Defendant has filed a response to the motion and Plaintiff has filed a reply.¹

II. Legal Standard

“In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).) To pursue the deposition of a nonparty, a party must

¹ The Court declines to consider the declaration and request for judicial notice Plaintiff filed with his reply. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38 [“The general rule of motion practice . . . is that new evidence is not permitted with reply papers.”]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 [same]; *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 [same]; *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 783 [points raised in the first time in reply should not be considered].)

generally serve a deposition subpoena. (*Id.*, § 2020.010, subd. (b).)” (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1030 (*Board of Registered Nursing*).)

If a nonparty disobeys a deposition subpoena, the subpoenaing party may seek a court order compelling the nonparty to comply with the subpoena under section 2025.480. (See Code Civ. Proc., §§ 1987.1, 2025.480; see, generally *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123 (*Unzipped*) [applying section 2025.480 to a business records subpoena directed to a nonparty]; *Board of Registered Nursing, supra*, 59 Cal.App.5th 1011 [same].)

Code of Civil Procedure section 2025.480, subdivision (a) provides, “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” Code of Civil Procedure section 2025.480, subdivision (i) provides, “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition.”

The moving party must show good cause for the documents sought. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 223-224.)

III. Merits of the Motion

Defendant is a licensed California mortgage brokerage. Defendant’s website included a “Find a Loan Officer” feature that displayed individual profile pages, each bearing a loan officer’s name, photograph, and Nationwide Multistate Licensing System (NMLS) identification number. Plaintiff alleges that Defendant included on these pages the profiles California-licensed loan officers, none of whom was employed by or affiliated with Loan Factory and none of whom consented to the use. According to Plaintiff, Stevens runs “The National Real Estate Post,” which posts daily videos related to the real estate industry. Via that platform, Stevens published a video entitled, “Identity Theft, Big Trouble Loan Factory,” which Plaintiff contends “was highly critical of Loan Factory and its CEO, Thuan Nguyen (‘Nguyen’), and claimed to have taken screenshots of all the loan officers improperly posted on the webpage.” (Motion, p. 6:9-

11.) After the video was posted, Stevens spoke to Nguyen and the video was taken down or made private. Stevens now works for Defendant.

Plaintiff noticed Stevens's deposition but he failed to appear as scheduled. On December 26, 2025, Stevens sat for his deposition but he did not answer certain questions. Stevens never objected to the subpoena and filed no opposition to the instant motion. The subpoena requested

"All DOCUMENTS RELATED TO the BIG TROUBLE LOAN FACTORY video, including, but not limited to: all video files; all footage captured, whether ultimately used or not used; all COMMUNICATIONS with any PERSON in preparation of the video; all notes, the BIG TROUBLE LOAN FACTORY video itself; etc." Plaintiff contends that, in his video, Stevens stated that he had screen shots of the information of unaffiliated loan officers appearing on Defendant's website. Defendant removed from its website the information regarding other unaffiliated loan officers after the video was posted and thus, the screenshots are the best available evidence in support of Plaintiff's claims. Plaintiff contends that Stevens did not produce the screenshots despite repeated requests. Plaintiff has shown good cause for the screenshots he seeks.

Plaintiff also seeks continued deposition of Stevens on the following topics: (1) questions pertaining to the contents of the Big Trouble Loan Factory Video, (2) questions pertaining to communications with Thuan Nguyen in advance of Stevens's deposition, and (3) questions pertaining to communications with Thuan Nguyen at the time the Big Trouble Loan Factory Video was published, and Stevens' decision to take down the video. The court finds these topics to be relevant to the allegations in this case.

Defendant contends that Plaintiff had the opportunity to depose Stevens and to ask him the questions he seeks to ask him in a continued deposition. But, Plaintiff argues that Stevens produced some documents 40 minutes before his deposition and some after the deposition had occurred. Specifically, Plaintiff argues that it did not receive the video and text communications between Stevens and Nguyen from around the time the video was posted until after the deposition had completed. Thus, Plaintiff did not have all of the information he has

currently at the time of the deposition and did not have the opportunity to question Stevens fully.

Defendant argues that Stevens informed Plaintiff's counsel that was suffering from health issues at the time of the deposition and that the continued deposition will be unduly burdensome for him. Defendant requests that the court order that Stevens produce a declaration under oath indicating whether he possesses the documents Plaintiff seeks. Defendant asserts that Stevens should be given the opportunity to respond in writing regarding whether the requested documents exist. While the court is sympathetic to any health issues Stevens may be suffering, Stevens was served with the motion and thus, he had the opportunity to respond in writing and inform the court if the requested items did not exist.

The motion to compel compliance is GRANTED.

VII. Conclusion

The motion to compel compliance is GRANTED. Plaintiff is ordered to meet and confer with Stevens to schedule his continued deposition so that Plaintiff may ask questions on the topics identified in Plaintiff's separate statement. Stevens is ordered to produce all responsive documents within 60 days of the date of the Court's order on this matter.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 2

Case Name: *Rebeca Castillo v. Hain Celestial Group, Inc.*

Case No.: 24CV439064

This is an action for alleged mislabeling of products intended for children by Defendant Hain Celestial Group, Inc. (“Defendant” or “Hain Celestial”). Before the Court is Defendant’s motion to stay this action pending resolution of an appeal in the federal action entitled *Howard v. Hain Celestial Group, Inc.* (“*Howard*”). Plaintiff Rebeca Castillo (“Plaintiff”) opposes the motion. As discussed below, the Court DENIES Defendant’s motion.

I. BACKGROUND

A. Factual

Plaintiff alleges that Defendant misbrands its baby and toddler food products with nutrient content claims on the product packages that are prohibited by the Food and Drug Administration (“FDA”). (Complaint, ¶ 2.) According to Plaintiff’s operative Complaint, Defendant manufactures, distributes, markets, advertises, and sells a variety of baby and toddler food products under the brand name “Earth’s Best” (the “Products”). (*Id.*, ¶ 11, Exhibit A.) Defendant categorizes its food products on its website into two groups: 1) Infant & Baby Foods; and 2) Toddler Foods. (*Id.*, ¶ 13.) Defendant defines “toddler” to be a child under two, and is aware that “toddlers” is commonly understood by parent-consumers to mean that age range, while the Centers for Disease Control (“CDC”) defines the term as “1-2 years of age.” (*Id.*, ¶¶ 16-18.) Defendant intends that its products be used by children under 2 and, for example, utilizes Sesame Street characters to make the products more appealing to that demographic. (*Id.*, ¶¶ 22-29.) Defendant also places its Products in the baby food aisle in the grocery store so that they will be marketed to and purchased by parents of children under the age of two. (*Id.*, ¶ 40.)